

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Joshua Richardson	Team: Squad #15	CCRB Case #: 201703562	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 04/26/2017 9:00 PM	Location of Incident: East 80th Street and Paerdegat 15th Street; Inside of the 69th Precinct stationhouse	Precinct: 69	18 Mo. SOL 10/26/2018	EO SOL 10/26/2018	
Date/Time CV Reported Sun, 04/30/2017 10:30 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 05/05/2017 11:59 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			069TH
2. POM Nicklas Yardan	25155	946577	069 PCT
3. SGT Daniel Guida	5358	941862	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Nicklas Yardan	Abuse: On April 26, 2017, at East 80th Street and Paerdegat 15th Street, in Brooklyn, Police Officer Nicklas Yardan stopped the vehicle in which § 87(2)(b) was an occupant.	
B.SGT Daniel Guida	Abuse: On April 26, 2017, at East 80th Street and Paerdegat 15th Street, in Brooklyn, Sergeant Daniel Guida stopped the vehicle in which § 87(2)(b) was an occupant.	
C. Officers	Abuse: On April 26, 2017, at East 80th Street and Paerdegat 15th Street, in Brooklyn, officers stopped the vehicle in which § 87(2)(b) was an occupant.	
D. Officers	Abuse: Inside of the 69th Precinct stationhouse, officers refused to provide their names and shield numbers to § 87(2)(b)	
E. Officers	Abuse: Inside of the 69th Precinct stationhouse, officers did not process § 87(2)(b)'s complaint regarding officers.	

Case Summary

On April 30, 2017, § 87(2)(b) called the IAB Command Center generating IAB log No. 17-15977. The CCRB received this complaint on May 5, 2017, with § 87(2)(b)'s contact number and resident address provided.

On May 9, 2017, § 87(2)(b) was called but there was no answer. The undersigned left a voice message informing him the reason for the call and a callback number. On the same day, § 87(2)(b) was mailed and emailed please call letters which were not returned.

Between May 11, and June 1, 2017, § 87(2)(b) was called seven more times. However there was never an answer. The undersigned left voice messages explaining the reason for the call, informing him that if the agency does not hear from him soon, the CCRB might have to close the case without conducting a full and thorough investigation, and left a callback number.

On May 16, 2017, § 87(2)(b) was mailed and emailed second please call letters which were not returned.

On May 23, 2017, a CTS database search revealed that this was § 87(2)(b)'s first complaint. On the same day, a Lexis-Nexis database search revealed negative results for § 87(2)(b).

On May 23, 2017, Investigative Manager Edwin Pena conducted a CLEAR database search which confirmed § 87(2)(b)'s resident address and contact number, and also revealed two additional possible contact numbers. However upon calling both of these numbers, the undersigned confirmed that they were both not in service.

On June 2, 2017, New York City and New York State Department of Correction Inmate Look-up searches revealed that § 87(2)(b) was not incarcerated.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED].

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date